

to deliberate su questioni di rilevanza strategica per l'Ente, con conseguente impegno di tempo e risorse”;

- “il RPD ha provveduto a comunicare i propri dati di contatto al Garante, come da procedura, e ha confermato che tali informazioni sono ora disponibili sul sito dell'Ente”;

- “l'Ente ha sempre dimostrato la massima disponibilità e collaborazione con l'Autorità, e ha intrapreso azioni correttive per garantire la conformità alle normative vigenti”;

3. Considerazioni conclusive.

Alla luce di quanto sopra esposto, si ritiene che il Consorzio abbia intrapreso le misure necessarie per garantire la corretta designazione e comunicazione dei dati di contatto del RPD, nonché per migliorare la visibilità delle informazioni relative alla protezione dei dati personali. Tuttavia, si evidenzia la necessità di un monitoraggio continuo per assicurare che tali pratiche siano mantenute nel tempo e che eventuali futuri adempimenti siano tempestivamente comunicati all'Autorità.

Pertanto, si dispone quanto segue:

1. Il Consorzio è invitato a continuare a garantire la massima trasparenza e accessibilità delle informazioni relative al RPD, assicurando che i dati di contatto siano sempre aggiornati e facilmente reperibili sul sito istituzionale.

2. Si raccomanda al Consorzio di implementare procedure interne che garantiscano la tempestiva comunicazione all'Autorità di eventuali modifiche riguardanti la designazione del RPD e i suoi dati di contatto.

3. Si dispone che il presente provvedimento venga pubblicato sul sito istituzionale del Garante per la protezione dei dati personali e comunicato al Consorzio.

Così deciso in Roma, il 11 aprile 2024.

IL GARANTE PER LA PROTEZIONE DEI DATI PERSONALI

Prof. Pasquale Stanzone

of the specific context and the actual situation of the organization) and that he could effectively carry out the functions assigned to the RPD as per the Regulation.”

- “Furthermore, it should be noted that the RPD has fulfilled his duties in substantial and effective terms both before and after his appointment, and has also simultaneously faced, in addition to the services permanently assigned to him, new demanding tasks whose scope was not anticipated (nor was it clear what they would entail in terms of time commitment for several consecutive months): he was lacking in the most neutral activity among those carried out, albeit important and due, namely the communication of his data to the Authority, which was indeed made with the aforementioned delay.”

- “Dr. XX, as the head of the IT systems service, on XX proposed the repeal of the Regulation for the processing of information (adopted by resolution of the Provincial Council no. XX), subsequently approved by the Extraordinary Commissioner.”

From the statements made in the aforementioned memoranda, it emerged that the Consortium, in appointing Dr. XX as RPD in XX, entrusted this role to an individual who, due to the additional responsibilities incumbent upon him and the obligations he was called to fulfill during that specific period (such as those related to the establishment, regulation, and functioning of the Assembly of Mayors), did not possess the necessary resources, in relation to the reference context, also from a temporal perspective, to effectively carry out the functions assigned to the RPD by the Regulation. Moreover, Dr. XX, precisely in his capacity as head of various services that make up the administrative apparatus of the Consortium (namely, those of the Secretary of the Director of Sector I, Assistance to the Bodies, IT Systems, Tourism, and Legal Service), found himself in a position to exercise functions that could potentially give rise to a conflict of interest with those of the RPD, as in such roles he assumes a position that involves defining the purposes or methods of processing personal data.

For these reasons, with a note dated XX (prot. no. XX), the Office, based on the elements acquired

and the checks carried out, notified the Consortium, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation, for having appointed an RPD who is simultaneously responsible for other tasks and functions that may give rise to a conflict of interest, in violation of Article 38 (paragraphs 2 and 6) of the Regulation.

With the same note, the Consortium was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With a note dated XX (prot. no. XX), the Consortium submitted its defensive memorandum, along with some attachments, in which it provided elements regarding the difficulties related to the organizational structure of the Entity and the use of available resources, and stated, among other things, that:

- "For the purpose of identifying Mr. XX as RPD, the entire Structure of the Entity was considered with its resources and organization and the listing of assignments, including - to Service 6 of Sector I - precisely that concerning Privacy in the terms reported by the local regulation [...] other aspects were also evaluated, sifting through the indications available at the time in the specialized literature, primarily those from the Authority: the human resources and time available were assessed, the characteristics that the employment contract should have, and also the conflict of interest as it was read in the research; it was also considered to assign a task externally, but also not to expose oneself to financial liability if the internal investigation suggested, as it seemed, the possibility of appointing him internally;

- In light of the reference context, it was deemed, "taking into account the small size of the Entity and its organization, that Mr. XX could hold the role of RPD, as he was equipped, in converging terms, with skills developed in the field, with time available (due to the gradual emptying over the years of most of the assignments legally required in the assigned services); with human resources dedicated to his support; with autonomy and independence in the role of RPD in compliance with the provisions of the general regulation and, simultaneously, not subject to the typical scenarios potentially capable of creating a 'conflict of interest' for the reasons expressed above, assessed in concrete terms, (based on the specific context and the actual situation of the organization) and that he could effectively carry out the functions assigned to the RPD as per the Regulation."

of the organizational structure, its dimensions and

the human resources available, as well as its

work contents in terms of actual tasks

assigned and active), as well as lacking

decision-making powers, top-level and/or delegations of managerial functions, as well as autonomy and independence

for all other tasks different from the role of

DPO";

- "the Entity's assessment regarding the identification of

Mr. XX as DPO, in XX, was not random but

the result of an analysis that attempted to reconcile

the organization of the Entity, the human resources available among those NOT on a part-time contract (among which the Authority prefers not to draw), NOT assigned to tasks

considered sensitive by the Authority for the purposes of

conflict of interest, NOT with profiles lower than

that of manager/officer (as indicated by the Authority) and, furthermore, with competencies, time space, and

support of human resources, in quantity and quality

deemed suitable to fulfill the functions of

DPO as expected;

- "on the second aspect, that concerning the

existence of a conflict of interest (violation no. 2), it is also deemed worthy of being

overcome. It seems evident, first of all, that many substantial elements of defense have already been presented above, addressing the context and the consistencies of the tasks that powerfully inform the topic under discussion. Here too, it was necessary to represent the specific case, otherwise not identifiable, to highlight, first of all, that Mr. XX cannot, legally and effectively, “intervene” in a direct, autonomous, and independent manner, on the Privacy system, except as DPO [...]. And from the reading of the DPO's report [...], in the part where it states that Mr. XX proposed the repeal of the Regulation for the processing of information, it seems appropriate to underline the substance of the proposal and the act, for two obvious and shared aspects, substantially already outlined by the DPO in his own report”;

- “it has been deemed that there is no “conflict of interest” concerning Mr. XX: if the typical hypotheses of conflict of interest in relation to the tasks ordinarily performed, as outlined by the Authority, can, with caution, be waived in small entities, the danger diminishes and even less can a conflict be configured if – in the same context of small dimensions – tasks are assigned to a subject who does not handle sentinel matters (personnel, accounting, anti-corruption) and who does not have, by law, decision-making power, the power to adopt or modify acts, delegated powers, to which it is added that it is the same organizational and hierarchical structure of the Entity, among other things, outlined in compliance with specific legal provisions, that excludes in re ipsa, in the organizational context in which the undersigned Administration operates, the “possibility” of a conflict of interest between the responsibility of XX for certain Services, and his role as DPO [...] in the absolute good faith and trust of having correctly read and interpreted”;

- “it should be added, for completeness and substance, as already stated in the defense of XX, that the reported criticisms do not appear to have been raised by users, but above all do not appear to have exposed anyone, external or internal to the Entity, to limitations in the protection of their personal data and/or to damages of any kind, with the latter which, more generally, do not appear to have been either caused or produced, for any other reason.”

With note of XX (prot. no. XX), the Consortium has submitted additional memoranda with particular reference to the initiatives adopted or that it intends to adopt in order to ensure compliance with the obligations provided for by the Regulation, specifying, in particular, that, “although the Entity believes it has acted properly and is not in default, it has decided - in order to eliminate any doubt and possible concern of the Authority regarding the current situation and the same resolution being approached - to temporarily assign the role of DPO externally, lacking at this time any internal alternative to that already arranged and in place.”

3. Outcome of the investigative activity.

The processing of personal data by public entities must take place in compliance with the provisions of the legislation on personal data protection, with particular reference to Article 37, paragraphs 1, letter a), and 7, to Article 38, paragraphs 2 and 6, and to Article 39, paragraph 1, letter a), of the Regulation, taking into account also recital 97.

Even in the "Guidelines on Data Protection Officers (DPOs)", adopted by the Article 29 Working Party on personal data protection on December 13, 2016, and amended on April 5, 2017, it is provided that:

- "Article 37, seventh paragraph, of the GDPR requires the controller or the processor to publish the contact details of the DPO, and to communicate the contact details of the DPO to the relevant supervisory authorities. These provisions aim to ensure that both data subjects (within or outside the entity/controller or processor) and the supervisory authorities can contact the DPO easily and directly without having to go through another structure operating within the controller/processor" (para. 2.6);
- "among the resources to be assigned to the DPO is the "sufficient time for the performance of the tasks assigned to the DPO. [...] Otherwise, the risk is that the activities the DPO is called upon to perform may end up being neglected due to conflicts with other priorities. It is essential to have sufficient time to dedicate to the performance of the tasks expected of the DPO," as "The 'data protection' function must be able to operate efficiently and have sufficient resources in proportion to the processing carried out." (par. 3.2);
- "The absence of conflicts of interest is closely related to the obligations of independence. Even if a DPO may perform other functions, the assignment of such additional tasks and functions is only possible provided that they do not give rise to conflicts of interest. This means, in particular, that a DPO cannot hold a role within the organization of the data controller or the data processor that involves defining the purposes or means of processing personal data. This is an element to be considered on a case-by-case basis, looking at the specific organizational structure of the individual data controller or data processor. Broadly speaking, there may be situations of conflict within the organization of the data controller or the data processor regarding top managerial roles (CEO, COO, CFO, health manager, marketing director, HR director, IT manager), but also with respect to hierarchically lower positions if the latter involve determining the purposes or means of processing" (par. 3.5).

Lastly, it is noted that the "Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector," adopted by the Authority on April 29, 2021, with provision no. 186 (web doc no. 9589104), specifies that:

- "Tasks that belong to the data controller and fall outside the activities of consulting, monitoring, and, more generally, advising, established by Article 39 of the Regulation – as well as, possibly, maintaining the register of processing activities referred to in Article 30 of the Regulation (see WP29 Guidelines, par. 4.5, pp. 24-25) must not be assigned to the DPO. While recognizing that the tasks listed therein constitute only an exemplary representation, it remains the case that the DPO cannot be called upon to carry out, personally, activities that, under the Regulation, are the responsibility of the controller/processor, under penalty of administrative sanction in case of violation" (par. 8);
- "The WP29 Guidelines and the FAQs from the Authority have already indicated situations of conflict

of interest in relation to top managerial roles such as, among others, '... CFO ... HR director, IT manager,' 'anti-corruption and transparency officer,' or 'head of Information Systems ... or that of the Statistics Office.' In any case, the same Guidelines specify that the investigation must be conducted 'on a case-by-case basis, looking at the specific organizational structure of the individual data controller or data processor': this means that only the concrete examination of each individual reality – considering elements such as the size of the entity, available resources, the complexity of the structure, the types of processing carried out, the quality and quantity of the data processed, etc. – can lead to a definitive assessment of the existence or not of causes of incompatibility. This assessment, in any case, must be provided by the data controller, also based on suitable documentation, by virtue of the principle of accountability referred to in Articles 5, par. 2, and 24 of the Regulation. That said, regarding monocratic assignments (such as those of executives directly involved in processing, or even top management of the entity), the conflict of interest often becomes evident *icto oculi*, and it is difficult for the data controller to prove that the same person who determines the processing within their sector has the necessary independence to exercise, correctly, transparently, and impartially, those supervisory tasks on compliance with the regulations and the policies of the controller regarding personal data protection, as provided for by Article 39, par. 1, lett. b), of the Regulation. It can certainly be asserted that a conflict of interest exists in relation to the aforementioned roles (such as HR management or accounting, the IT manager, or the anti-corruption and transparency officer), as these are sectors where personal data processing is certain and transversal across the entire administration, as well as significant in terms of the quantity and quality of personal data processed, as well as risks to the rights and fundamental freedoms of the data subjects" (par. 10.1).

In this specific case, with reference to the specific observations made in the initiation of the procedure aimed at adopting corrective measures, regarding what was argued by the Consortium, the following is noted:

- it has been established in the records that the designation of the DPO occurred only on XX, more than three and a half years after the entry into force of the Regulation, which, in Article 37, par. 1, lett. a), imposes this obligation on public entities – including the Consortium – thus constituting a violation of the aforementioned Article 37, par. 1, of the Regulation;

- it has also been established in the records that the Consortium communicated the contact details of the DPO to the Authority only on XX (therefore, over a year after the designation of the same), that is, following the sending of a note by the Authority itself, which contested the aforementioned non-compliance. Regarding the aspect of the omitted publication, the screens produced by the Consortium attached to the defense writings do not demonstrate

the actual disclosure of the contact details of the DPO, as they refer to the designation act (which does not contain the contact details), in which the references of Dr. XX are indicated within the "Administrative Secretariat Office – Head of Legal and Litigation Service" (but without any mention of the DPO role) and the documentation prepared by the Entity in the context of obligations related to anti-corruption and transparency regulations: however, none of this content clearly makes the DPO's contact details intelligible to the user, to the extent that the Consortium subsequently provided a specific web page containing such information, accessible from the homepage of the site. Therefore, the described omissions constitute a violation of Article 37, paragraph 7, of the Regulation;

- the assignment of the DPO role to an individual already holding other responsibilities for multiple services within an administration – as is the case here, that of "responsible for various Services within the Entity (Secretary of the Head of Sector I, Assistance to the Authorities, IT Systems, Tourism, and lastly the Legal Service)" – raises the possibility that the individual in question may not fully, effectively, and independently fulfill the duties assigned to the DPO by the Regulation, due to a lack of necessary resources, especially in terms of time, and the exercise of functions that have given or could give rise to a conflict of interest, thereby constituting a violation of Article 38, paragraphs 2 and 6, of the Regulation.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the Consortium during the investigation – for which the truthfulness may be called into question pursuant to Article 168

of the Code – although worthy of consideration in terms of understanding the context and defining the degree of responsibility, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Guarantor No. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and it is noted:

- the failure to designate the DPO until XX, in violation of Article 37, paragraph 1, of the Regulation;
- the late publication and communication to the Authority of the DPO's contact details, in violation of Article 37, paragraph 7, of the Regulation;
- the identification, as DPO, of an employee of the Consortium who, while holding other positions, did not have the necessary resources, especially in terms of time, and could potentially find themselves in a position of conflict of interest, in violation of Article 38, paragraphs 2 and 6, of the Regulation.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

In this regard, in this specific case, the violation of the cited provision is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 4, of the Regulation, which the Guarantor has the power to impose pursuant to Articles 58, paragraph 2, letter i), and 83 of the same Regulation as well as Article 166 of the Code. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation, in relation to which the following observations are made.

The failure to designate until the month of XX and the failure to communicate the DPO's contact details deprived the Consortium of a mandatory and essential figure to ensure compliance with the Regulation, also negatively affecting the Authority's ability to contact the DPO easily and directly.

On the other hand, it is noted that the Consortium has taken steps to remedy the violation and mitigate its possible negative effects, publishing and communicating the DPO's contact details to the Authority following the initiation of the procedure, and appointing a new DPO who was not in the same situation as the previous one, and who has no previous relevant violations or previous measures under Article 58 of the Regulation. It is also noted that the violation was negligent.

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €6,000 (six thousand) for the violation of Articles 37, paragraphs 1 and 7, and 38, paragraphs 2 and 6, of the Regulation as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also considered that the accessory sanction of publication on the Guarantor's website of this provision should be applied, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Guarantor's Regulation No. 1/2019, as it concerns the failure to fulfill an obligation that has become mandatory for more than five years.

Finally, it is believed that the conditions of Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Guarantor, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

noted the unlawfulness of the conduct of the Free Municipal Consortium of Enna, described in the terms of the motivation, consisting of the violation of Articles 37, paragraphs 1 and 7, and 38, paragraphs 2 and 6, of the Regulation.

Regulation;

ORDERS

the Free Municipal Consortium of Enna, located at

Piazza Garibaldi, n. 2, 94100 - CF 80000810863 - pursuant to

articles 58, paragraph 2, letter i), and 83, paragraph 5, of the Regulation and article 166, paragraph 2, of the Code, to pay the sum of euro 6,000 (six thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning;

COMMANDS

the Free Municipal Consortium of Enna, to pay the sum of euro 6,000 (six thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with article 27 of law no. 689/1981.

In this regard, it is noted that the offender retains the right to settle the dispute

by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to article 166, paragraph 8, of the Code (see also article 10, paragraph 3, of legislative decree no. 150 of 1/9/2011);

PROVIDES

for the publication of this provision on the website of the Guarantor pursuant to article 166, paragraph 7, of the Code;

the annotation of this provision in the internal register of the Authority, as provided for by article 57, paragraph 1, letter u), of the Regulation, of the violations and the measures adopted in accordance with article 58, paragraph 2, of the Regulation.

Pursuant to articles 78 of the Regulation, 152 of the Code, and 10 of legislative decree no. 150/2011, against this provision it is possible to file an appeal before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Messina, April 11, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei